



ENEOS – Chevron Australia Downstream

MN - 65036

Phase 1 Determination

Acquisition may be put into effect

1 October 2026

1. Determination and statement of reasons

Notified acquisition	ENEOS Holdings, Inc. via a wholly owned subsidiary (ENEOS), proposes to acquire 100% of the share capital of Chevron Australia Downstream Holdings Pty Ltd (Chevron Australia Downstream) (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, ENEOS, is a Japanese petroleum and energy group. It operates five key business segments including petroleum products, oil and natural gas exploration and production, high performance materials, and electricity and renewable energy. In Australia, ENEOS' relevant operations are focused on the downstream wholesale distribution of fuels and lubricants, with a nominal retail fuel footprint in rural New South Wales. The target, Chevron Australia Downstream, encompasses Chevron's integrated downstream platform that distributes fuels and lubricants across Australia and includes three Queensland based proprietary terminals and a national network of retail service stations operated by either the company or third-party retailers.
Overlap between the Parties	The parties overlap in the supply of secondary wholesale fuel (petrol and diesel) and lubricants across New South Wales, Queensland, Victoria and Western Australia.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, submissions from third parties and publicly available information. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition would be unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings. • The Acquisition would lead to a very small increase in ENEOS' share in the supply of secondary wholesale fuel and lubricants. • The merged entity would likely continue to face competition from multiple alternative suppliers of secondary wholesale fuel and lubricants.

Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**